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**UPDATED Probate Calendar for Tuesday August 25, 2026
9:00 a.m. in Department 4, with Judge Tana L. Coates Presiding**

No.	Case Number	Case Name	Type of Matter	Probate Notes
<u>The following matters are OFF CALENDAR, DISMISSED, DENIED OR CONTINUED:</u>				
2	21PR-0171	Estate of: David Perry	Petition Filed 11/25/2025 - Final Distribution and Accounting [DUE 7/28/26]; cont'd 9/16/25, 4/7/26	CONTINUED LIST: <i>The matter is continued to February 9, 2027 at 9:00 a.m. in D4. All additional materials are due by January 8, 2027. A fully amended Petition, with a full account, is needed. The following is noted:</i> <i>1. Proof of service of Notice of Hearing was not located on Steven Gregory. Counsel notes that a Declaration of Diligent Search was filed on June 7, 2022. Due to the prior litigation in the Petition, it does not appear a formal ruling occurred on the request, which is now recommended to be accepted. This will be discussed at the next hearing.</i> <i>2. Are Kati Perry and Tricia Perry, Katie Viola Sly and Patricia Irma Sly, and Patrica Sly-Feighner? The names change between the filings throughout the case, and an explanation was not found in the Amended Petition, although it was requested in the prior probate notes.</i> <i>3. A Final Inventory was filed on July 23, 2026, but this document is NOT discussed in the amended Petition.</i>

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				<i>Section 11 of the Amended Petition lists three Inventories filed, dated February 3, 2025 (a Final), August 8, 2025 (A corrected/ amended Final), and a June 23, 2026 (another “final”). The Feb. 3, 2025 Inventory filed indicates it is a “reappraisal for sale”. There was no original inventory located for which the “Reappraisal” applies. The Inventory and Appraisal filed on July 8, 2025 indicates it is a corrected “reappraisal for sale”, which has the same issue as the February 3, 2025 document. The August 8, 2025 document and June 23, 2026 document, referenced in the Amended Petition, do not exist in the file. It is unclear what is being alleged due to the incorrect dates and names. Correction is needed in the Amended Petition and Amended or Corrected Inventories and Appraisals are needed to explain what is actually part of the estate as of the date of death.</i> <i>4. The account provided does not match the inventories filed, is missing mandatory schedules, and is not in compliance with Probate Code section 1060 et. seq. The losses on the account do not match the rest of the Petition, namely because the Carry value is incorrectly reported. There is no asset on hand schedule for the beginning or ending of the account. It is unclear why the bank statements were attached. These are not substitutes for an accounting. A fully Amended Account is needed.</i>

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				5. <i>The statutory fees cannot be determined because they expressly use values that are not verifiable, as they use inaccurate or non-existent Inventory and Appraisals per item 22.</i> 6. <i>Costs of \$1,819.17 are recommended. This includes the request of \$1,966.17 less the \$75.00 “set up fee” that is not a cost, but a fee imposed by the attorney’s office which is not authorized by the Probate Code for statutory fees.</i> 7. <i>It appears, based on the will, the remaining assets of the estate, including later discovered assets, after payment of fees and costs, would pass to a church. The Petition does not address why the residual is passing to the adult children.</i> 8. <i>A proposed order is needed.</i>
4	21PR-0279	Estate of: Betty Robinson	Petition Filed 10/09/2023; Petition for Final Distribution Waiver of Accounts [DUE 7/24/26]; (Amended 9/16/24) cont'd 4/30/24, 10/08/24, 9/2/25	CONTINUED LIST: <i>The Petition is continued to April 13, 2027, at 9:00 am. in D-4 to be heard after the Status Report filed August 11, 2025. All additional items must be filed by March 16, 2026. The following is noted:</i> 1. <i>The Amendment to the Petition for Final Distribution and Petition and Assignments of Interest to the Estate of Betty Robinson confirms the property listed as part of this estate (estate of Betty Robinson), property at 257 9th Street San Miguel (Property), currently belongs to the Estate of James Baker, father of the Decedent. A proceeding to clear title out of the Estate of James Baker and transfer the property to the heirs of that estate is needed. The attempt to identify the possible heirs of the estate of James Baker informally</i>

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				<i>and then assign the property to this probate estate using Probate Code section 11604, is not supported by any legal authority. Probate Code section 11604 deals with beneficiaries of the estate of Betty Robinson, as defined by Prob. Code, §24 assigning their interest in this estate to others, unverified heirs of another estate assigning another estate asset to this estate.</i> 2. <i>It does not appear from the materials provided by Petitioner that the property is actually owned by the Decedent. It is unclear at this time how the court can approve the distribution as prayed. The matter is recommended for a long continuance so the Petitioner can address how to deal with the property vested in the name of James Baker.</i> 3. <i>The balance of the Petition and Amendment to the Petition cannot be determined until the property is legally found to be part of this estate.</i>
8	23PR-0238	Estate of: James Lombardo	Order to Show Cause re Status Report [DUE 7/21/26]; cont'd 1/27/26	OFF CALENDAR. <i>A Petition for Termination of Administration was filed on May 7, 2026 and is currently set for hearing on October 13, 2026.</i>
15	26PR-0038	In Re: The Jay Clark Johnson Trust date 9/19/2018	Petition Filed 2/03/2026 - Petition Compel Trustee to Report and Account	CONTINUED LIST: <i>The matter is continued to February 2, 2027 at 9:00 a.m. in D4. All additional materials are due by January 8, 2027. The following is noted and a full review of the file, including notice, cannot be completed until the materials are submitted for review.</i> 1. <i>A copy of the Trust is needed.</i>

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				2. <i>A copy of the Settlement Agreement is needed.</i> 3. <i>An Objection has been received.</i>
16	26PR-0043	Estate of: Joaquin Diaz	Petition Filed 2/12/16 - Spousal Property Petition	DENIED LIST: <i>The evidence provided confirms that the property was not community property and was instead specifically transmuted as sole and separate property.</i>
21	26PR-0089	Estate of: Terry Romero	Competing Petition Filed: 6/26/2026 WILL	CONTINUED LIST. *UPDATE* <i>The Petition is continued to October 6, 2026 at 9:01 a.m. in D-4 to be heard with the other pending Petitions. All additional items must be filed by September 8, 2026. The following is noted:</i> 1. <i>The Court requires a completed Duties and Liabilities of Personal Representative form. (Prob. Code § 8404.)</i> 2. <i>Proposed Letters have not been submitted.</i> 3. <i>A proposed order is needed.</i>
26	25PR-0160	In Re: James Michael Benson Family Trust dated May 23, 2000	Petition Filed: 5/21/2026 Settlement Agreement	CONTINUED LIST: <i>The matter is continued to October 20, 2026 at 9:02 a.m. in D4. All additional information is due by September 15, 2026. A copy of the Trust was never provided with any of the materials filed. It is not attached to the original Petition, or this Petition. It was not located with any of the other declarations filed. As this is a Probate Codes section 17200 Petition, the Court cannot assess the Petition and notice thereunder, without a copy of the Trust to confirm notice has been provided on all trustees and beneficiaries.</i>
27	26PR-0075	Estate of: Michael Johnson	Competing Petition Filed: 7/24/2026 WILL	CONTINUED LIST. *UPDATE* <i>The Petition is continued to January 12, 2027 at 9:01 a.m. in D-4. All additional items must be filed by December 15, 2026. The following is noted:</i> 1. <i>Item 3 of the Notice of Petition to Administer Estate filed July 24, 2026 is incomplete. The proposed</i>

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				<i>personal representative must be named. Amended Notice is needed.</i> 2. <i>The competing petition is set for the January 12, 2027 date.</i>
30	26PR-0257	Estate of: Christopher Scrivner	Petition Filed: 7/22/2026 INTESTATE	CONTINUED LIST. <i>The Petition is continued to January 26, 2027 at 9:01 a.m. in D-4. All additional items must be filed by December 29, 2026. The following is noted:</i> <i>1. A Notice of Petition to Administer Estate (JC Form DE-121) was not filed per code. (Prob. Code § 8100.)</i> <i>2. Item 1 of the Petition is incomplete. The name of the newspaper that publication will occur in must be specified.</i> <i>3. Item 2d. of the Petition is incomplete. One of the boxes must be checked.</i> <i>4. Item 5a. of the Petition is incomplete. Box (a) or (b) must be checked.</i> <i>5. Item 5b. of the Petition is incomplete. One of the boxes must be checked.</i> <i>6. Petitioner has waived bond as noted in Item 3e(3). The mandatory Waiver of Bond form (DE-142) has not been executed by Dustin Joseph Walker; waiving bond for Rhonda Hendrix. The bond waiver filed on July 22, 2026 indicates bond was waived by Dustin Joseph Walker for Dustin Joseph Walker. Dustin Joseph Walker is not the proposed personal representative. See Probate Code 8481(a)(2). An amended waiver is needed.</i> <i>7. A Proof of Publication is needed. (Prob. Code §8120.)</i>
<u>The following matters are PRE-APPROVED and no appearance is necessary unless an objection is made:</u>				

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1	18PR-0186	Estate of: Phyllis Sarno-Pratt	Status Report or Final Distribution and Accounting [DUE 7/24/2026]	APPROVED LIST: *UPDATE* <i>The Status Report filed August 18th, but served on August 5 for this date, is recommended for approval with modifications. Specifically, a continuance date of nine (9) months is recommended. The next hearing date is May 25, 2027 at 9:00 a.m. in D4. A new Status Report with proper warnings and Notice of Hearing must be filed by April 23, 2027. A proposed order for this Status Report is needed.</i>
5	22PR-0416	Estate of: Albert Bruce	Petition Filed 2/10/2026 - Final Distribution Waiver Account	APPROVED LIST: <i>The matter is approved, subject to the following:</i> <i>1. It is noted that the Petition requests the Court to allow payment for the Creditor's Claim filed by Phillips & Cohen Associates, Ltd. On behalf of Citibank, N.A. It is unclear why the claim remains unpaid, and why this is requested, as the personal representative is authorized to administer the estate under the Independent Administration of Estates Act (Probate Code §9251.) A declaration is needed explaining the delay. If the explanation is insufficient to the Court, the conditional approval will be revoked and the matter will be placed back on calendar.</i> <i>2. A consent to accept property from the Trustee of the beneficiary trust is needed. (Superior Court, San Luis Obispo County Local Rule, rule 11.1105.)</i> <i>A proposed order is needed.</i>
10	24PR-0409	Estate of: Teddy Cobb	Petition Filed 2/06/26 - Final Distribution Waiver Account	APPROVED LIST: *UPDATE* <i>It is recommended the Petition be approved, subject to the following:</i> <i>1. It is understood the parties have made arrangements outside of Court to satisfy the Attorney fees due. The</i>

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				<i>Court has not been asked to make any orders approving the same, beyond the amount due.</i> 2. <i>The prayer requests Petitioner be discharged upon filing of receipts. Petitioner will not be discharged until the Ex Parte Petition for Final Discharge is submitted and signed by the Court. The Supplement indicates the Petitioner understands and accepts this condition.</i>
12	25PR-0125	Estate of: David Bezerra	Petition Filed 2/09/26 - Final Distribution & Accounting	APPROVED LIST: <i>*UPDATE* The matter is approved as amended via declaration.</i>
13	25PR-0219	Estate of: Christopher Dale	Petition Filed 2/12/2026 - Final Distribution Waiver Account	APPROVED LIST: <i>*UPDATE* The Supplement filed August 6, 2026 appears to be an Amendment to a pleading pursuant to California Rules of Court, rule 7.3 (4). As such, new Notice of Hearing is needed under California Rules of Court, rule 7.53(a). It is noted the Petitioner filed Local Form E-1P with waivers, which contain language that allows later-filed Objections. This form is no longer in use and was discontinued in 2021. Attorney-drafted waivers of Notice of Hearing and the August 6th Supplement are needed before this Order will be signed. Approval is conditional until receipt of the waivers.</i>
17	26PR-0050	Estate of: John Goldman	Petition Filed 2/19/2026 - Spousal Property Petition	APPROVED LIST.
18	26PR-0101	Estate of: Barry Lewis	Petition Filed: 03/27/2026 [DUE 7/28/26] WILL; cont'd 6/2/26	APPROVED LIST.

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22	26PR-0145	Estate of: Delia Sowell	Petition Filed: 04/28/2026 [DUE 7/28/26] WILL cont'd 6/9/26	APPROVED LIST: *UPDATE* <i>The matter is approved, subject to a Declaration specifically explaining how the Petitioner is related to the decedent. The Supplement filed indicates Petitioner is a successor trustee to the underlying trust. Is petitioner a relative? A professional fiduciary? The relationship to the decedent is still unclear.</i>
23	26PR-0213	Estate of: Camerina Perez	Petition Filed: 06/17/2026 INTESTATE	APPROVED LIST.
24	26PR-0225	Estate of: Karen Franks	Petition Filed: 06/24/2026 INTESTATE	APPROVED LIST.
25	26PR-0256	Estate of: Cindy Davis	Petition Filed: 7/20/2026 INTESTATE	APPROVED LIST: *UPDATE* <i>The matter is recommended for approval.</i>
28	26PR-0229	Estate of: Judy Randazzo	Petition Filed: 06/30/2026 WILL	APPROVED LIST: *UPDATE*
29	26PR-0232	Estate of: Samuel Cullen	Petition Filed: 7/1/2026 INTESTATE	APPROVED LIST: *UPDATE* <i>It is recommended the Petition be approved, subject to the following determination:</i> 1. <i>Item 2d(1) is checked. A bond of \$541,943.00 is required as one of the proposed personal representatives lives out of state. (Cal. Rules of Court, rule 7.201(b); Super. Ct. San Luis Obispo County, rule 11.306) The parties are claiming an exceptional circumstance under San Luis Obispo Local Rule, rule 11.306(b). It is recommend the Court determine said circumstances exist and waive the bond.</i>

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<u>The following matters remain SET FOR HEARING and you should appear:</u>				
3	21PR-0279	Estate of: Betty Robinson	Status Report Filed 8/11/2025 [DUE 7/28/26] cont'd 3/17/26	HEARING LIST: Zoom or personal appearance is required. The following issues remain from the last hearing: 1. The current Status Report lacks proof of service of the Notice of Hearing and the required warnings under Probate Code section 12201. 2. A proposed order is needed.
6	23PR-0062	Estate of: Pamela Bauske	Status Report Filed: 7/13/2026	HEARING LIST: Zoom or personal appearance is required. Petitioner should be prepared to discuss the plan to close the estate. The following is noted: 1. The Second Status Report filed December 9, 2025 and heard on February 3, 2026 has not yet been approved, and was continued to this date. Another Status Report was filed on July 13, 2026. It is unclear if this is intended to amend the current Second Status Report, or if it needs its own hearing date as a Third Status Report. It is recommended the Court treat the Third Status Report as an Amended Second Status Report absent objection. 2. The proof of service of Notice of Hearing filed July 13, 2026 with the Third Status Report does not specify which Status Report was served.
7	23PR-0079	In Re: Janice A Pankey Trust dated 9/12/2012	Petition Filed 2/10/2026 - Approving Compensation	HEARING LIST: *UPDATED* An Objection has been filed as of August 21 st .

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9	24PR-0214	Estate of: Neal Franklin	Order to Show Cause re Dismissal [DUE 7/7/26]; cont'd 6/16/26	HEARING LIST: <i>Zoom or personal appearance is required. The Declaration file July 6, 2026 has been reviewed, and it is recommended the Court set the bond at \$0.</i>
11	25PR-0104	Estate of: Christopher Rounds	Order to Show Cause re Dismissal; Petition Filed 4/3/2025 - WILL [DUE 7/21/26]; cont'd 5/27/25 & 1/13/26 (Amended Petition Filed 1/13/26)	HEARING LIST: <i>Zoom or personal appearance is required. The following issues remain:</i> 1. <i>An Amended Petition was filed January 13, 2026. Due to this Amendment, new <u>Notice and Publication</u> stating that amendment occurred are needed. (Cal. Rules of Court, rule 7.53.)</i> 2. <i>A Proof of Holographic Instrument was provided but a copy of the purported will to be admitted to probate was not attached, as required. (Prob. Code, §§ 8220, 8222.)</i> 3. <i>The Declaration attached to the Proof of Publication filed January 13, 2026 indicates that Bradley Daniel Rounds has waived bond. The mandatory Waiver of Bond form (DE-142) has not been executed and is not attached to the Petition (Probate Code §8481(a)(2).)</i> 4. <i>Amended proposed Letters are needed. The proposed Letters submitted on January 13, 2026 are not signed and the affirmation portion is incomplete.</i>
14	25PR-0301	In Re: The Patricia L. McGinnis Living Trust dated January 3, 2024	Petition Filed 9/12/2025 - Compelling Accounting and Removal of Trustee, c/f: 4/14/26	HEARING LIST: <i>Zoom or personal appearance is needed. Although proofs of service were filed, they do not address the last set of Probate Notes posted.</i> 1. <i>Specifically, at the last hearing the Probate Notes state: Proof of service of Notice of Hearing is incomplete. If a party cannot be located, a declaration of diligent search is needed. Two parties listed in the</i>

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				<i>Trust are listed with “unknown address”. These persons must be served or addressed via a declaration of diligent search. (See Cal. Rules of Ct., rule 7.52.) In addition, the successor Trustee named, Tamara Brown, was not served. (Prob. Code, § 17203.)</i> 2. <i>The proof of service of Notice of Hearing filed April 16th and April 30th, do not address either of these issues. A declaration of diligent search has not been filed. Notice is still needed on Kiana Hearn, Ty Brown, Quinn Brown and Tamara Brown. If notice cannot be perfected, a declaration of diligent search is needed. Petitioner should appear to address why this has not occurred since the last hearing.</i>
19	PR040209	Estate of: J. Carl Treise	Petition to Withdraw Funds from Blocked Account	HEARING LIST: Zoom or personal appearance is needed.
20	PR040209	Estate of: J. Carl Treise	Petition Filed 1/27/2026 - Instruct Trustee; cont'd 6/2/26	HEARING LIST: Zoom or personal appearance is needed. Nothing has been filed as to this Petition since the last hearing. The following is still noted: 1. <i>Proof of service of Notice of Hearing has not been provided on all parties based on the March 3, 2026 filing. New proof of service of Notice of Hearing is needed. It is noted that persons are listed on the Petition, but those persons are not actually served. In addition, notice has been served to Kim and Terry Mathis in a combined entry, which is not authorized under California Rules of Court, rule 7.51 subsection</i>

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				<i>(a)(3). Notices mailed to more than one person in a household must be sent separately to each person.</i> 2. <i>It is unclear under what statute this Petition is brought, as it is titled in the name of the estate, filed in the estate case, but it cites Probate Code section 17200, a trust statute, as the authority for the transaction. Are the assets in question part of the Trust or the probate estate? If this is from the estate, is this a request for a preliminary distribution? If assets are held by the Trust, the Petition should have been filed in the Trust matter. The items of property need to be clearly identified as to what belongs to the Trust and what belongs to the estate and exactly what is requested. As noted by the instruments provided, the beneficiaries of the two differ.</i> 3. <i>An Objection has been filed.</i>

Subject to the rules below, attorneys and parties to a case may now contact the Probate Research Department using the following email: probate@slo.courts.ca.gov.

The following rules apply to use of the foregoing email address. An email that does not comply with the requirements below may not be reviewed.

1. Emails must be related only to a Probate Note (past or present).
 - a. The following exceptions apply: (1) A party or attorney has specifically received an email from the Court on an issue requiring response; or (2) the Court directed an email be sent to the Probate Research Department (Examples: Solicited email from a bench officer or a Court Attorney or information ordered to be provided via email by bench officer in Court).

2. **Emails must contain:**
 - a. **Subject Line: Hearing Date, Time, Department, Case Number and Case Name (Example: 10/1/19, 9:00, D99, 18PR0000, Estate of John Smith).**
 - b. **First Line of Email Body: Case Number, Case Name, and Description of the pleading on the calendar.**
 - c. **Reason for Request.**
 - d. **No Attachments.**
3. **Further, email inquiries must conform to the following guidelines:**
 - a. Questions must be from an attorney or party on the case.
 - b. The Court's response after the initial reply is limited to one email message per calendar matter, per hearing.
 - c. The body of the email (Reason for Request under item 2.c.) is limited to (5) lines to each deficiency or issue.
 - d. Emails may only inquire into clarifications regarding the Probate Note. This includes clarifying language, code sections, court rules and policies related to the Probate Note. Disputes regarding requirements or issues raised in the Probate Note may not be made via email.
 - e. Emails advising the Court of possible oversights may be sent.
 - f. **Continuances may not be requested via the probate email address.**
4. **This email procedure is NOT to be utilized for:**
 - a. Any requests for legal advice (including, but not limited to, how to clear the Probate Note), case management, and/or a recommendation for an attorney.
 - b. Confirmation of documents received by the Court. Please refer to the conformed copy of your filed document to confirm the Court's receipt. If you have not received a conformed copy of your document, please contact the Civil Clerk's Office.
 - c. Confirmation that documents have been reviewed.
5. **Response Time.** All correspondence will be addressed on a priority basis according to the hearing date. The Probate Research Department will make every effort to respond within two Court days of receipt of the email.